Chapter 17.110 Prohibition on the Sale or Provision of Certain Force-Fed Poultry Products

17.110.010 Purpose.

The purpose of this Chapter is to provide for the prohibition of the sale of certain force-fed products to prevent animal cruelty, to preserve the environment, to bolster the reputation of Portland's food service and retail community, to position Portland as a humane tourist destination, and to protect public morals related to animal welfare and environmental sustainability.

17.110.020 Definitions for Prohibition of Force-Fed Poultry Products.

As used in this Chapter, the following terms have the following meanings:

A. City Administrator means the City Administrator or designee.

B. Food service establishment means an establishment, located within the city of Portland, offering prepared food to be eaten by customers, whether such food is provided free of charge or sold, and whether consumption occurs on or off the premises.

C. Force-fed product means any product that is the result of force-feeding a bird, including but not limited to a duck or a goose, with the intent to fatten or enlarge the bird's liver.

D. Force-feeding means a process that causes a bird to consume more food than a typical bird of the same species would consume voluntarily. Force feeding methods include, but are not limited to, delivering feed through a tube or other device inserted into the bird's esophagus.

E. Retail establishment means any vendor, store, shop, sales outlet, or other establishment, including a grocery store or a delicatessen, which provides, offers for sale, or sells food within the city of Portland.

F. Sell or sale means any act of selling, trading, or bartering for monetary or nonmonetary consideration, and includes any transfer of ownership that occurs in the course of a commercial transaction.

17.110.030 Prohibited Conduct.

A. No retail establishment, or food service establishment, or any agent thereof, will provide, sell, or offer for sale or provide free of charge, or serve in any other manner any force-fed product or food product in which a force-fed product is an ingredient. For purposes of this Chapter, it will be a rebuttable presumption that an item advertised or represented as "foie gras" is a force-fed product. A party seeking to rebut such presumption will provide documentary evidence proving that the product they are offering for sale or selling, is not a force-fed product as defined in this Chapter. Products not represented as "foie gras," but which meet the force-fed definition, are covered by this Section of the Code.

B. For purposes of this Section, a sale or provision of sale will be deemed to occur only at the location within the city of Portland where the recipient takes physical possession of the item.

17.110.040 Authority of City Administrator.

A. The City Administrator is hereby authorized to administer and enforce the provisions of this Chapter.

B. The City Administrator is authorized to adopt administrative rules, procedures and forms to implement the provisions of this Chapter.

17.110.050 Penalties and Enforcement.

A. The City Administrator may enforce violations of Chapter 17.110 as follows:

1. Upon the first violation, the violator will receive a written warning notice that a violation has occurred. If the violation is not corrected within 14 days of the date the notice was issued, Subsection 2. will apply.

2. Any person, retail establishment, food service establishment, or any agent thereof who violates any provision of this Chapter will be subject to a civil penalty of not less than $1,000 and not more than $5,000 for each violation. Each violation will be treated as a separate and distinct offense, and in the case of a continuing violation, each day's continuance will constitute a separate and distinct offense. For purposes of this Subsection, a **violation** means a violation for which a notice of violation or citation has been issued and the time for correction or appeal has expired or been waived.

B. Any violator receiving a notice of violation must pay to the City the stated penalty.

C. Any violator may appeal the finding of a violation to the City Code Hearings Officer in accordance with the procedures set forth in Portland City Code Section 22.10.030.

17.110.060 Institution of Legal Proceedings.

The City Attorney, acting in the name of the City, may maintain an action or proceeding in a court of competent jurisdiction to compel compliance with or restrain by injunction the violation of any provision of this Chapter as an additional or alternative remedy.

17.110.070 Severability.

A. If any Section, Subsection, sentence, clause, or phrase of this Chapter is for any reason held to be invalid or unconstitutional, such decision will not affect the validity of the remaining portions of this Chapter. The Council declares that it would have passed this Chapter, and each Section, Subsection, sentence, clause and phrase thereof, irrespective of the fact that any one or more Sections, Subsections, sentences, clauses or phrases may be declared invalid or unconstitutional and, if for any reason this Chapter should be declared invalid or unconstitutional, then the remaining Section, Subsections, sentence, clause or phrases will be in full force and effect.